

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kenny Robinson, Jr.	Team: Team # 3	CCRB Case #: 200609388	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 07/15/2006 1:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/15/2008	Precinct: 44
Date/Time CV Reported Tue, 07/18/2006 2:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/18/2006 2:00 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Klein	28772	936874	044 PCT
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT William Mcsorley	00000	895725	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in the Bronx.	A . Complainant Uncooperative
B . POM Robert Klein	Force: PO Robert Klein used physical force against § 87(2)(b)	B . Complainant Uncooperative

Synopsis

§ 87(2)(b) called the CCRB on July 18, 2006, regarding an incident that occurred on July 15, 2006, in her residence, which is located at § 87(2)(b), in the Bronx. § 87(2)(b) stated that someone called the police to report that she had music playing in her apartment. Approximately ten other individuals, including § 87(2)(b) and her brother, were inside of the apartment. Five officers responded to the call. All five officers entered § 87(2)(b)'s apartment despite her refusal to allow them inside. An officer, who § 87(2)(b) identified by name, as PO Klein, allegedly grabbed § 87(2)(b)'s brother, who remains unidentified, by his shirt and tried to pull him out of the apartment. Officer Klein also asked § 87(2)(b) for her identification card to determine if she lived in the apartment. § 87(2)(b) was then issued a summons § 87(2)(b). § 87(2)(b) also provided the names of Captain McSorley and Sergeant Higgins as being present for this incident. However, without an official statement from § 87(2)(b) and additional evidence, the officers identified by § 87(2)(b) will be listed as witness officers, with the exception of PO Klein. § 87(2)(b) specifically alleged that PO Klein used physical force against her brother and therefore that allegation is pleaded against PO Klein. § 87(2)(g)

§ 87(2)(g)

The investigator sent an initial contact letter to § 87(2)(b) on July 20, 2006. On July 25, 2006, the investigator attempted to contact § 87(2)(b) but there was no answer and therefore a voicemail message was left. § 87(2)(b) called back on that same day and when the investigator spoke with her she stated that she would call back in ten minutes, which she never did. On July 26, 2006, the investigator made another attempt to contact § 87(2)(b) however, her phone continually rang; and a voicemail message was unable to be left. On August 1, 2006, the investigator made another attempt to contact § 87(2)(b) via telephone, but she did not answer. A voicemail message was left requesting that she call the investigator back. On August 8, 2006, the investigator spoke with § 87(2)(b) and she stated that she would call back to schedule an interview. No phone call was received. On that same day a final please call letter was sent to § 87(2)(b). On August 11, 2006, the undersigned investigator attempted to contact § 87(2)(b). A message was left for § 87(2)(b) requesting for her to contact the investigator. As of August 11, 2006, § 87(2)(b) has not contacted the CCRB. It is therefore recommended that the allegations be closed as complainant uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: